

**SYNTHETIC COURT DOCUMENT — FICTIONAL CASE — NOT AN  
ACTUAL FILING**

Record class: clerk's record-completion notice and merits scheduling order.

UNITED STATES COURT OF APPEALS FOR THE FOURTH CIRCUIT

No. SYN-CA4-26-CV-4104 · Record-complete order

# **Record-Complete Notice and Briefing Order**

Entered February 2, 2026.

The Clerk has reviewed the district clerk's January 30 certification and the parties' transcript and designation submissions. The record is complete for purposes of this interlocutory appeal. That administrative determination means the designated district materials are available; it does not decide whether a particular item is admissible, relevant, or within the scope of collateral- order review.

Appellant Officer Nolan Rusk shall file his opening brief and the joint appendix by March 16, 2026. Appellee Mara Ellison shall file her response brief by April 15, 2026. Any reply brief shall be filed by May 6, 2026. These dates are fixed from the present order and may be changed only by a later court order.

The parties shall use the certified district pagination when citing the record. The appendix must include the notice of appeal, the order under review, relevant motion papers, the factual materials needed to understand the assumed-facts analysis, and the district docket certificate. Neither the briefs nor appendix may imply that an appellate page label was part of an original district filing.

# Briefing instructions and disputed-fact boundary

The opening brief must begin with a statement of appellate jurisdiction and must identify which arguments accept the district court's plaintiff-favorable facts. If Rusk asks the Court to reject an account as inconsistent with recordings, he shall state that request separately and explain the basis for interlocutory jurisdiction. Ellison may challenge jurisdiction over that portion without filing a separate motion unless a rule otherwise requires.

Each brief shall distinguish a dispute about what occurred from the legal effect of facts assumed for summary judgment. Descriptions of the body-camera interval from 19:53:08 through 19:53:22 must honor the district record: Rusk's view is materially blocked, Vega's view does not reliably show the hands, and synchronized audio does not independently establish a strike or equipment reach. No party may present generated imagery as record evidence.

The joint appendix may include the authenticated transcript, frame-sequence map, occlusion analysis, synchronized-audio comparison, and custody declaration. Inclusion does not settle the parties' competing interpretations. Counsel shall confer on the index and certify that the contents came from the district record.

The ordinary word, format, service, and disclosure requirements of the appellate rules remain in effect.

# Administration of the appeal

No stay request is pending. The denial of summary judgment did not itself impose an affirmative injunction, and this order does not direct the district court's management of matters outside the appeal. Counsel shall notify the Clerk promptly of settlement, a material district-court event, a related proceeding, or any development affecting appellate jurisdiction.

The Court has not selected an argument date. After briefing is complete, the appeal will be screened under the ordinary decisional process. A later calendar notice will identify any panel, session, time allocation, and submission instructions. Parties should not infer a merits view from scheduling or record completion.

If counsel identifies a genuine omission from the certified record, the parties must confer and propose a correction tied to a district filing or exhibit. A motion to supplement with material created after January 9 must state an independent legal basis; mere usefulness on appeal is insufficient. The Clerk will not receive native video through ordinary appendix filing without advance coordination regarding format and custody.

Entered at the direction of the Court on February 2, 2026, with electronic notice to all counsel. The filing dates stated above control unless modified by a subsequent order.